

DISCIPLINE IN THE WORKPLACE

Discipline may be defined as 'action taken by management against an individual or group who have failed to conform to the rules established by management within the organisation'.

The formal disciplinary process

The disciplinary process can be viewed as:

a. A control process

Like any control process within the organisation, the formal disciplinary process comprises a number of stages:

- Definition of the desired standard of performance/behaviour. This is found in the disciplinary policy and disciplinary rules.
- Assessment of employee's performance/behaviour against these standards. This takes place when management has cause to believe that the action of the employee is at variance with the designated standards.
- The control mechanism itself to implement corrective action by means of sanction when the assessed performance/behaviour is found to be at variance with the stipulated standards.
- Feedback on the effectiveness of the corrective action by assessing whether the resulting performance/behaviour of the employee now conforms to the designated standards.

b. The disciplinary process as a punishment or training process.

There are three main aims for the formal disciplinary process:

- Retribution (punishment)
- Deterrence (aimed at discouraging)
- Rehabilitation (transforming)

The nature of industrial discipline has been confined to negative (punitive) and positive (corrective) approaches. The negative concept encompasses the use of penalties and the treat of penalties to cause people to obey orders. Practice has proved that this achieves only the minimum performance necessary to avoid punishment. The positive concept involves the creation of an attitude and an organisational climate where employees

willingly conform to established rules and regulations and adhere to the desired standards of behaviour because they understand, believe in and support them.

The negative concept implies a retributive/deterrence approach whilst the positive concept implies rehabilitation.

The main purpose of the formal disciplinary process is to provide an acceptable mechanism within which management may exercise its control over employees when their behaviour does not reach required standards. The disciplinary process comprise such elements as the disciplinary policy, disciplinary rules, sanctions and discipline application.

Disciplinary rules

Rules are do's and don'ts of the organisation created by management for the purpose of control. Rules should be specified in a handbook so that employees are aware of the expected behaviour and are also aware of the penalty that goes with the breach of those rules.

The actions which warrant formal disciplinary action are commonly categorised between:

- **Gross misconduct** – these are offences warranting summary dismissal or at least severe disciplinary action for a single incident.
- **Minor misconduct** – these are offences warranting only verbal or written warning for a single incident but progressing to more severe disciplinary action and eventual dismissal for a persistent offender.

It is again possible to divide the actions within the work place which may lead to a formal disciplinary response by management into three broad categories:

1. Actions contrary to some general societal norm relating to personal behaviour, e.g. fighting, swearing, stealing, drunkenness, etc.
2. Actions contrary to specific rules derived from external legislation, e.g. sexual and racial harassment whose source and legitimacy is determined by law. Negligence can be included here.
3. Actions contrary to the managerially determined control system, e.g. time keeping and work performance, or contrary to the concept of managerial authority and prerogative, e.g. failure to obey instructions and insubordination.

The essential features of a disciplinary procedure

- It should be in writing
- Must specify to whom they apply
- Provide for matters to be dealt with quickly
- Indicate the disciplinary actions which may be taken
- Specify the levels of management which have authority to take the various forms of disciplinary action, ensuring that immediate supervisors do not have to dismiss without reference to senior management.
- Provide for individuals to be informed of the complaints against them, and to be given an opportunity to state their case before decisions are reached
- Give individuals the right to be accompanied by a trade union representative or a fellow employee of their choice.
- Ensure that, except for gross misconduct, no employee is dismissed for a first breach of discipline
- Ensure that disciplinary action is not taken until the case has been carefully investigated
- Ensure that individuals are given an explanation for any penalty imposed.
- Provide a right of appeal, and specify the procedure to be followed.

Types of disciplinary action/sanctions

- **Verbal warnings** – this is the most frequent and least severe penalty. Formal verbal warnings should be recorded in the employee's personal record and may be taken into account should management need to take further disciplinary action against the employee.
- **Written warning** – any written warning should clearly state the offence for which the employee is being disciplined and where relevant refer to any previous verbal or written warning. It should clearly indicate what future performance or conduct is expected and the likely consequences if there is no improvement. It is useful to get the employee to sign that he has received and understood the written warning. Many organisations have two levels of written warnings, a first and final written warning.
- **Suspension** – these can be of two types, a precautionary suspension with pay pending disciplinary investigation and a disciplinary suspension without pay as a sanction within the formal disciplinary procedure.
- **Transfer or demotion** – these may be used as a sanction in their own right or as alternative to dismissal
- **Dismissal** – this is the ultimate sanction and should only be undertaken when there is no other alternative available.

The disciplinary interview

The disciplinary interview is intended to establish the facts relating to alleged misconduct, or to reprimand or issue a formal warning or notice of dismissal. The general approach to the interview may be as follows:

- Explain the problem as you see it
- Ask the subordinate to respond
- Listen to his viewpoint with an open mind
- Decide whether there is a gap between standards and performance
- If so explore the reasons for the gap
- Ensure the subordinate knows the required standards.
- Agree a realistic timetable for eliminating the gap
- Agree what coaching and/training is required
- Fix a review date
- Keep a note of what was agreed at the interview.